

24CMCV02072 24CMCV02072

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Division: Civil Law and Motion

Department: A

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Case Number: 24CMCV02072 Hearing Date: June 30, 2026 Dept: A

Defendants Los Angeles County Sheriff's Department and A. Diaz (collectively, "Defendants") move for terminating sanctions against Plaintiff Temogene Williams. Defendants contends that Williams has, without explanation, failed to comply with the court's March 20, 2026 order compelling Williams' compliance with Defendants' notice of deposition. No parties have opposed this motion.

On March 20, 2026, the court granted Defendants' motion to compel Williams' deposition attendance, with the deposition to take place not later than April 1, 2026. After the hearing, the parties met and conferred and agreed to take Williams' deposition on April 1, 2026. (Ortega Decl. ¶ 5.) Williams' counsel stated at the April 1, 2026 deposition that he had personally given Williams the notice of deposition. (Ortega Decl., Ex. B.) Williams failed to appear for the April 1, 2026 deposition. (Ortega Decl. ¶ 6.) There is no indication that, as of today's date, Williams has appeared for a noticed deposition.

Plaintiff has, without explanation, failed to comply with the court's March 20, 2026 order compelling deposition attendance. However, no notice of ruling was filed with respect to the March 20, 2026 order, although the court ordered Defendants to give notice at that time. Because there is no admissible evidence that Williams was ever given notice of the court's March 20, 2026 order, any failure by Williams to comply with this order cannot be presumed to have been willful. The court therefore finds that terminating sanctions are inappropriate under the circumstances and denies the motion.

Movant to give notice.